THE HONORABLE ROBERT J. BRYAN

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF WASHINGTON
AT TACOMA

AILA CURTIS, ET AL, Plaintiffs, v. PEACEHEALTH, LIZ DUNNE, DOUG KOEKKOEK, TODD SALNAS, PATRICK ALLEN AND GOV. KATE BROWN Defendants	Case No.: 3:23-cv-05741-RJB **PLAINTIFFS' MOTION FOR LEAVE TO FILE OUT OF TIME BRIEF**

David Schexnaydre, counsel for Plaintiffs, requests leave to file one day late an opposition to the Motion to Dismiss filed by PeaceHealth Defendants one day late, as follows:

1. On October 31, 2023, Plaintiffs and PeaceHealth Defendants filed a Stipulated Motion Setting Briefing Schedule (Doc 25) for PeaceHealth Defendants' Motion to Dismiss, setting the deadline for PeaceHealth Defendants to file their Motion to Dismiss by November 30, 2023, and allowing Plaintiffs until January 3, 2024, to file an opposition, and allowing PeaceHealth Defendants to file a reply brief by January 12, 2024.

2. PeaceHealth Defendants filed their Motion to Dismiss (Doc 30) on November 30, 2023.

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3. On January 4, 2024, counsel for PeaceHealth emailed undersigned counsel inquiring whether Plaintiffs filed their opposition memorandum.

4. Undersigned counsel checked his calendar and saw that the deadline for filing Plaintiffs' opposition memorandum was calendared for Friday, January 5, 2024.

5. Undersigned counsel advised counsel for PeaceHealth that he had the deadline calendared for January 5, at which point counsel for PeaceHealth reminded undersigned counsel that the parties had agreed on January 3 as the deadline.

6. Undersigned counsel compared the Stipulated Motion Setting Briefing Schedule for PeaceHealth Defendants' Motion to Dismiss to his calendar and discovered that he made a calendaring error by placing the deadline on the calendar for January 5.

7. Undersigned counsel had already started drafting the opposition memorandum but for the two days prior, January 2 and 3, undersigned counsel was at home in bed with fever, chills, cough, and body aches, but because of the mistaken calendar entry, undersigned counsel believed that there was time to recover from his illness and finish drafting the opposition memorandum.

8. Upon realizing that the deadline has January 3 rather than January 5, and since undersigned counsel had already started drafting the opposition memorandum, he finished the memorandum in an attempt to file it on January 4, the same day he was reminded of the January 3 deadline.

9. When undersigned counsel realized the memorandum could be finalized and filed, he emailed counsel for PeaceHealth advising that the memorandum could be filed

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today and whether there was any objection to a Motion for Leave to File Out of Time Brief by one or two days. Undersigned counsel added that he would have no objection to PeaceHealth being granted additional time to file a reply brief if counsel for PeaceHealth needed it.

10. Although counsel have had very pleasant and professional dealings since the beginning of the litigation and have agreed to prior requests for modifications to deadlines in the case, including undersigned counsel previously agreeing to requests from counsel for PeaceHealth to extend the deadlines for PeaceHealth to file its Motion to Dismiss, agreeing to PeaceHealth's request for overlength briefs, and agreeing to a modified timetable for the Rule 26 conference, initial disclosures, combined joint status report, and discovery plan, counsel for PeaceHealth advised that she would not be able to agree to undersigned counsel's Motion for Leave to File Out of Time Brief, even though the brief would late by one day minimum or two days maximum.

11. Plaintiffs' opposition memorandum is now complete and ready to be filed.

12. Undersigned counsel respectfully requests leave of court to file its Memorandum in Opposition to PeaceHealth's Motion to Dismiss out of time, which would make the filing one day late at a minimum or two days late at a maximum.

13. Undersigned counsel also indicates to the court that Plaintiffs have no objection to the court allowing PeaceHealth an additional two days to file its reply brief, if counsel for PeaceHealth believes one is necessary.

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14. PeaceHealth's Motion to Dismiss is currently noted for January 12, and because there is no objection to granting PeaceHealth additional time to file a reply brief, there is no prejudice to PeaceHealth.

15. Undersigned counsel apologizes to the court and counsel for his oversight, and for not realizing the oversight while ill, and in the interest of equity and justice for all parties, undersigned counsel for Plaintiffs moves the court for an order allowing Plaintiffs to file the attached Memorandum in Opposition to Motion to Dismiss and to allow PeaceHealth additional time to file a reply brief if counsel for PeaceHealth deems one necessary.

Date: 1/4/24

SCHEXNAYDRE LAW FIRM

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CERTICATE OF SERVICE

I hereby certify that on January 4, 2024, I electronically filed the foregoing with the Clerk of the Court using the CM/ECF system which will send notification of such filings to the all counsel of record. This will also certify that I conferred with opposing counsel in an attempt to resolve the issue at hand without filing a motion, but resolution could not be achieved.

/s/ David J. Schexnaydre
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